.1 An initial survey before the ship is put into service or before the certificate required under regulation 6 of this Annex is issued for the first time. This survey shall be such as to ensure that the equipment, systems, fittings, arrangements and material fully comply with the applicable requirements of chapter 3 of this Annex;

.2 A renewal survey at intervals specified by the Administration, but not exceeding five years, except where regulation 9.2, 9.5, 9.6 or 9.7 of this Annex is applicable. The renewal survey shall be such as to ensure that the equipment, systems, fittings, arrangements and material fully comply with

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
is applicable. The renewal survey shall be such as to ensure that the equipment, systems, fittings, arrangements and material fully comply with applicable requirements of chapter 3 of this Annex;

.3 An intermediate survey within three months before or after the second anniversary date or within three months before or after the third anniversary date of the certificate which shall take the place of one of the annual surveys specified in paragraph 1.4 of this regulation. The intermediate survey shall be such as to ensure that the equipment and arrangements fully comply with the applicable requirements of chapter 3 of this Annex and are in good working order. Such intermediate surveys shall be endorsed on the IA PP Certificate issued under regulation 6 or 7 of this Annex;

.4 An annual survey within three months before or after each anniversary date of the certificate, including a general inspection of the equipment, systems,

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
.4 An annual survey within three months before or after each anniversary date of the certificate, including a general inspection of the equipment, systems, fittings, arrangements and material referred to in paragraph 1.1 of this regulation to ensure that they have been maintained in accordance with paragraph 5 of this regulation and that they remain satisfactory for the service for which the ship is intended. Such annual surveys shall be endorsed on the IAPP Certificate issued under regulation 6 or 7 of this Annex; and

.5 An additional survey either general or partial, according to the circumstances, shall be made whenever any important repairs or renewals are made as prescribed in paragraph 5 of this regulation or after a repair resulting from investigations prescribed in paragraph 6 of this regulation. The survey shall be such as to ensure that the necessary repairs or renewals have been effectively

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
investigations prescribed in paragraph 6 of this regulation. The survey shall be such as to ensure that the necessary repairs or renewals have been effectively made, that the material and workmanship of such repairs or renewals are in all

respects satisfactory and that the ship complies in all respects with the requirements of chapter 3 of this Annex.

2 In the case of ships of less than 400 gross tonnage, the Administration may establish appropriate measures in order to ensure that the applicable provisions of chapter 3 of this Annex are complied with.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 12 -

3 Surveys of ships as regards the enforcement of the provisions of this Annex shall be carried out by officers of the Administration.

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
3 Surveys of ships as regards the enforcement of the provisions of this Annex shall be carried out by officers of the Administration.

.1 The Administration may, however, entrust the surveys either to surveyors nominated for the purpose or to organizations recognized by it.
Such organizations shall comply with the guidelines adopted by the Organization.

.2 The survey of marine diesel engines and equipment for compliance with regulation 13 of this Annex shall be conducted in accordance with the revised NOx Technical Code 2008.

.3 When a nominated surveyor or recognized organization determines that the condition of the equipment does not correspond substantially with the particulars of the certificate, it shall ensure that corrective action is taken and shall in due course notify the Administration. If such corrective action is not taken, the certificate shall be withdrawn by the Administration. If the ship is in a

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
shall in due course notify the Administration. If such corrective action is not taken, the certificate shall be withdrawn by the Administration. If the ship is in a port of another Party, the appropriate authorities of the port State shall also be notified immediately. When an officer of the Administration, a nominated surveyor or recognized organization has notified the appropriate authorities of the port State, the Government of the port State concerned shall give such officer, surveyor or organization any necessary assistance to carry out their obligations under this regulation.

.4 In every case, the Administration concerned shall fully guarantee the completeness and efficiency of the survey and shall undertake to ensure the necessary arrangements to satisfy this obligation.

4 Ships to which chapter 4 of this Annex applies shall also be subject to the surveys specified below, taking into account the guidelines adopted by the Organization:

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
4 Ships to which chapter 4 of this Annex applies shall also be subject to the surveys specified below, taking into account the guidelines adopted by the Organization:

.1 an initial survey carried out before a new ship is put in service and before the International Energy Efficiency Certificate is issued. The survey shall verify that the ship's attained EEDI is in accordance with the requirements in chapter 4 of this Annex, and that the SEEMP required by regulation 26 of this Annex is on board;

.2 a general or partial survey, according to the circumstances, carried out after a major conversion of a new ship to which this regulation applies. The survey shall ensure that the attained EEDI is recalculated as necessary and meets the requirement of regulation 24 of this Annex, with the reduction factor applicable to the ship type and size of the converted ship in the phase corresponding to the date of contract or keel laying or delivery determined for

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
applicable to the ship type and size of the converted ship in the phase corresponding to the date of contract or keel laying or delivery determined for the original ship in accordance with regulation 2.2.18 of this Annex;

.3 in cases where the major conversion of a new or existing ship is so extensive that the ship is regarded by the Administration as a newly constructed ship, the Administration shall determine the necessity of an initial survey on attained EEDI. Such a survey, if determined necessary, shall ensure that the attained EEDI is calculated and meets the requirement of regulation 24 of this Annex, with the reduction factor applicable corresponding to the ship type and size of the converted ship at the date of the contract of the conversion, or in the absence of a contract, the commencement date of the conversion. The survey shall also verify that the SEEMP required by regulation 26 of this Annex is on

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
absence of a contract, the commencement date of the conversion. The survey shall also verify that the SEEMP required by regulation 26 of this Annex is on board and, for a ship to which regulation 27 applies, has been revised
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 13 -

appropriately to reflect a major conversion in those cases where the major conversion affects data collection methodology and/or reporting processes;

.4 for existing ships, the verification of the requirement to have a SEEMP on board according to regulation 26 of this Annex shall take place at the first intermediate or renewal survey identified in paragraph 1 of this regulation,

whichever is the first, on or after 1 January 2013;

.5 the Administration shall ensure that for each ship to which regulation 27 applies,

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
whichever is the first, on or after 1 January 2013;

.5 the Administration shall ensure that for each ship to which regulation 27 applies,
the SEEMP complies with regulation 26.2 of this Annex. This shall be done prior to collecting data under regulation 27 of this Annex in order to ensure the methodology and processes are in place prior to the beginning of the ship's first reporting period. Confirmation of compliance shall be provided to and retained on board the ship;

.6 the Administration shall ensure that, for each ship to which regulation 28 applies, the SEEMP complies with regulation 26.3.1 of this Annex. This shall be done prior to 1 January 2023. Confirmation of compliance shall be provided to, and retained on board, the ship;

.7 the verification that the ship 's attained EEXI is in accordance with the requirements in regulations 23 and 25 of this Annex shall take place at the